



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 6-24-2025
By: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 127TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JUNE 17, 2025

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Carmelito E. Valeroso		SB Member
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ORDINANCE NO. 06
Series of 2025

“AN ORDINANCE ESTABLISHING THE RULES AND REGULATIONS GOVERNING THE OPERATIONS OF THE HUBASON RIVER RESORT AND ADVENTURE TRAIL AND PRESCRIBING CHARGES THEREOF”

Author: Hon. Michael C. Escuyos

Enacted by: All Member present

EXPLANATORY NOTE

The proposed Ordinance seeks to provide a clear and comprehensive framework for the management, regulation, and sustainable development of the Hubason River Resort and Adventure Trail, a key tourism and ecological site of the Municipality of Carmen, Surigao del Sur.

In recent years, there has been a notable increase of guests to this natural attraction, highlighting its potential to become a significant contributor to local tourism, economic development, and environmental awareness. However, the absence of clear rules, operational guidelines, and a structured free system has resulted in challenges including overcrowding, improper waste disposal, damage to natural resources, safety risks, and lost revenue opportunities for the municipality.

This measure aims to:

1. Institutionalize the operations and management of the Hubason River Resort and Adventure Trail by the Office of the Municipal Mayor and, by the supervision of the Municipal Tourism Office.
2. Promote environmental protection and sustainable tourism by enforcing rules and behavior guidelines for all guests.
3. Generate local income with all proceeds allocated for the maintenance of the facility.
4. Ensure public safety, order, and cleanliness within the premises through enforceable regulations and penalties for violations.
5. Encourage community participation and provide employment, especially in guiding, maintenance, and tourism support services.

This ordinance also provides for a schedule of fees and charges tailored to the services and amenities offered, ensuring affordability while sustaining operations. It includes provisions of penalties for violators to maintain discipline and order.

Through this legislation, the Municipality of Carmen, Surigao del Sur demonstrates its commitment to promoting responsible tourism, protecting the natural resources, and maximizing the economic and social benefits for its constituents.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in a session assembled, that:

Section 1. Title. This Ordinance shall be known as the **"The Hubason River Resort and Adventure Trail Operations and Management Ordinance of 2025"**.

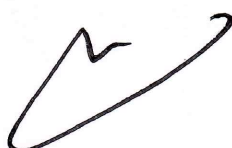
Section 2. Declaration of Policy. It is hereby declared the policy of the Municipality of Carmen, Surigao del Sur to promote eco-tourism, preserve ecological balance, ensure public safety, and establish sustainable income-generating activities through the proper management and regulation of the Hubason River Resort and Adventure Trail.

Section 3. Objectives. This ordinance aims to:

- a. Provide a framework for the efficient, safe, and environmentally responsible operation of the Hubason River Resort and Adventure Trail;
- b. Establish rules and regulations for the use its facilities;
- c. Prescribe fees and charges to support the maintenance and development;
- d. Promote tourism, local employment, and economic development;
- e. Protect the natural ecosystem of the river and surroundings areas

Section 4. Definition of Terms. For the purpose of this Ordinance, the following terms shall mean:

- a. **Hubason River Resort** – the designated area along the river developed for tourism and recreation.
- b. **Adventure Trail** – a marked path for trekking hiking, biking, or other adventure activities.


- c. **MTO** – refer to Municipal Tourism Office
- d. **MENRO** – refer to Municipal Environment and Natural Resources Office
- e. **Guest** – any person or group availing the services and facilities
- f. **Guide** – a trained individual authorized by the Municipal Tourism Office (MTO) to accompany and assist guests.

Section 5. Management and Supervision. Per Organizational Structure for the first two (2) years of operation from the Business Plan, the Hubason River Resort and Adventure Trail Facility shall be under the Mayor’s Office with the supervision of the Tourism Office and the Manager. Thereafter two (2) years of operation, the said facility shall be managed by the General Manager in coordination with the Facility Manager.

Section 6. Rules and Regulations. The following rules and regulations for the guest/s are strictly prohibited:

- a. Littering
- b. Smoking in non-designated area
- c. Gambling inside the resort
- d. Vandalism and Destruction of property
- e. Such other penalties as may be provided in the approved Hubason River Resort and Adventure Trail- Business Plan of the Municipality adopted through SB Resolution No. 307, Series of 2024 and affirmed by SP Resolution No. 2672-24, Series of 2024

Section 7. Fees and Charges. The following fees shall be imposed:

Type of Fee	Amount	Remarks
Entrance Fee 18 yrs. old and above	Twenty Pesos (Php20.00)	Per Head
Entrance Fee 17 yrs. old and below	Fifteen Pesos (Php15.00)	Per Head
Entrance Fee 0 months to 5 yrs. old	Free	Per Head
Environmental Fee	Five Pesos (Php5.00)	Per Head
Trail Adventure Fee/Trekking Fee	One Hundred Pesos (Php100.00)	Per Head
Cottage	Five Hundred Pesos (Php500.00)	Per day
Tent	Two Hundred Pesos (Php200.00)	Per day
Lodging hut/room	One Thousand Five Hundred Pesos (Php1,500.00)	Per day
Beach Umbrella (w/ 4 chairs)	Two Hundred Pesos (Php200.00) additional chair Five Pesos (Php5.00) each	Per day
Open bar/restaurant rental	Five Thousand Pesos (Php5,000.00)	Per month
Function Hall with sound system and projector with screen (with 50 chairs and 5 tables-no cover)	Five Thousand Pesos (Php5,000.00)	Per day (1-100 persons)
Function Hall with sound system and projector with screen (with 50 chairs and 5 tables-no cover)	Six Thousand Pesos (Php6,000.00)	Per day (101-150 persons)
Function Hall with sound system and projector with screen (with 50 chairs and 5 tables)	Seven Thousand Pesos (Php7,000.00)	Per day (151-200 persons)
Function Hall with sound system and projector with screen (with 50 chairs and 5 tables) free entrance; use of venue-strictly 8:00 AM to 5:00 PM)	Eight Thousand Pesos (Php8,000.00)	Per day (201-250 persons)
Rentals:		
Table	Twenty Pesos (Php20.00) each	w/o cover
Chairs	Five Pesos (Php5.00) each	w/o cover
Lounge spaces	Two Thousand Pesos (Php2,000.00)	Per Month

- A 20% discount will be deducted from the Senior Citizens (SC) and Persons with Disability (PWD) upon presentation of their SC/PWD IDs.

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Section 8. Penalties. Violation of Section 6 of this Ordinance shall be imposed a fine of One Thousand Pesos (Php1,000.00) Only or an imprisonment for a period of six (6) months, or both in the discretion of the court.

Section 9. Appropriation. The income derived from the collection of fees and penalties shall accrue to the separate account of Hubason River Resort and Adventure Trail and shall be used for the maintenance and improvement of the Hubason River Resort and Adventure Trail.

Section 10. Implementing Rules and Regulations. Within fifteen (15) days from approval of this ordinance, the necessary rules and regulations for the proper implementation of its provisions shall be formulated by the Municipal Mayor's Office, Municipal Tourism Office, Municipal Treasurer's Office, Municipal Planning and Development Office, and Municipal Environment and Natural Resources Office.

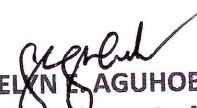
Section 11. Separability Clause. If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

Section 12. Repealing Clause. All ordinances, rules, regulations, and issuances inconsistent with this Ordinance are hereby repealed or modified accordingly.

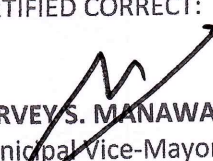
Section 13. Effectivity. This Ordinance shall take effect fifteen (15) days after its posting in at least three (3) conspicuous places in the municipality.

ENACTED this 17th day of June, 2025, at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.


JOCELYN S. AGUHOB
Local Legislative Staff Assistant II/
Acting Secretary

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor